

]SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index No.:

Date Purchased:

-----X
LYDIA SPICER,

SUMMONS

Plaintiff,

Plaintiffs designate Queens County as the
place of trial.

against

The basis of venue is:
Plaintiff's Residence

THE CITY OF NEW YORK, CASEY THOMAS and
WILLIAM CROWE.

Defendants.

Plaintiffs reside at:
QUEENS

-----X

County of New York

To the above named Defendant:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
August 24, 2020

/s/ Gary N. Rawlins

GARY N. RAWLINS, ESQ.

Attorney for Plaintiff(s)

LYDIA SPICER

777 Westchester Avenue, Suite 101

White Plains, NY 10604

(212) 926-0050

(212) 926-0059

TO:

New York City Law Department
100 Church Street
New York, New York 10007

CASEY THOMAS

WILLIAM CROWE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
LYDIA SPICER,

Plaintiff,

against

THE CITY OF NEW YORK, CASEY THOMAS and
WILLIAM CROWE.

Defendant(s)
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**VERIFIED
COMPLAINT**

Index No.:

Date Purchased:

Plaintiff, by her attorney, **GARY N. RAWLINS**, as and for his Verified Complaint,
respectfully alleges, upon information and belief:

1. The Plaintiff, **LYDIA SPICER** at all times herein mentioned was and still is a resident of the County of Queens and the State of New York.

2. At all times mentioned herein, Defendants **THE CITY OF NEW YORK, CASEY THOMAS and WILLIAM CROWE** and others not presently known to the Plaintiff, were and still are residents of the County of Queens and the State of New York.

3. At all times herein mentioned, Defendant **THE CITY OF NEW YORK ("NYC")**, was and still is a municipal corporation, created, organized and existing under and by virtue of the laws of the State of New York.

4. Prior to the commencement of this action, a notice of claim in writing was served on behalf of Plaintiff, **LYDIA SPICER**, upon **NYC and the Defendant Officers** in accordance with Section 50-e of the General Municipal Law.

5. That notice of claim was served on August 22, 2019.

6. Within ninety days of (90) of on or about May 24, 2019 a notice of claim in writing was served on behalf of Plaintiff, **LYDIA SPICER**, upon **NYC and Defendant Officers**, in accordance with Section 50-e of the General Municipal Law.

7. Prior to the commencement of this action, notice of the intention of Plaintiff, **LYDIA SPICER** to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by the New York NYC Charter to adjust such claims, was served on behalf of Plaintiff upon **NYC**..

8. Although more than thirty (30) days have elapsed since service of such notice of claim, the Defendants neglected and have refused to pay said claim or adjust same.

9. This action is commenced within one (1) year and ninety (90) days from on or about May 24, 2019 subject to any applicable tolls.

10. At all relevant times, Defendant CASEY and CROWE were members of the **NYPD**, and were employees of Defendant **NYC**, and was acting for, upon and in the course of and in the furtherance of the business of his employers and within the scope of his employment.

11. The individual Defendants were acting pursuant to the authority conferred upon them by Defendant police department and Defendant municipality.

12. At all times herein mentioned, defendants **NYC** and Defendant **OFFICERS** stood in such a relationship with each other in providing law enforcement services as to make each liable for the acts and omissions of the others.

13. Defendant **NYC** is vicariously liable for the acts of Defendants **CASEY AND CROWE**.

FACTUAL ALLEGATIONS

14. On May 24, 2019, Plaintiff Lydia Spicer, who was emotionally disturbed (“EDP”) at the time, was approached by defendant officers. Defendant officers knew or should have known that the Plaintiff was EDP at the time they pursued her. Defendants negligently failed to isolate and contain Ms. Spicer and chose to approach Ms. Spicer. Ms. Spicer reacted to the defendants and was shot in the abdomen. This is a civil litigation action seeking damages against Defendants for excessive force, battery and negligence.

15. Defendant **OFFICERS** knowingly used excessive force on Lydia Spicer and negligently responded to an EDP call knowing they were not equipped with tasers although they were trained to use them and although the patrol guide required their use and/or the use of some other non-lethal force.

16. Plaintiff, **LYDIA SPICER** sues all Defendants in their individual capacities.

**AS AND FOR A FIRST CAUSE OF ACTION FOR
EXCESSIVE FORCE, ASSAULT AND BATTERY AS AGAINST ALL
DEFENDANTS**

17. Plaintiff **LYDIA SPICER** repeats and reiterates each and every one of the above allegation set forth above with the same force and effect as though set forth herein length.

18. The level of force employed by the individual Defendants was objectively unreasonable and in violation of the Plaintiff’s rights.

19. As a result of the foregoing, Plaintiff sustained, bodily injuries as previously set forth, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her New York State and City constitutional rights.

20. Specifically, defendant officers chose to respond to an emotionally disturbed person (“EDP”) call knowing that they were not armed with a taser, negligently failed to isolate and contain Ms. Spicer and negligently failed to follow the patrol guide. Ms. Spicer is still being prosecuted to date.

21. As consequences of Defendants' negligent behavior and violation of New York State and common laws, and the safety directives of the patrol guide, Plaintiff, **LYDIA SPICER**:

- a) was deprived of her freedom;
- b) was incarcerated and suffered in incarcerated ;
- c) was subjected to great fear, terror, personal humiliation, degradation, ridicule and disgrace;
- d) was subjected to great physical, mental, and emotional distress, suffering and harm, resulting in the need to seek professional counseling for the trauma which she incurred;
- e) was discredited in the minds of many members of the community, having her personal reputation and character injured;
- f) was prevented from attending to her necessary affairs in business during the period of his detention;
- g) was permanently impaired as to her earning ability;
- h) was required to incur substantial bills for legal services rendered, and was otherwise injured and damaged;
- i) and continues to suffer pain and mental and emotional distress as a result of the aforesaid unlawful conduct of defendants, their agents, employees, and servants.

22. Plaintiff was not a threat to herself or the public at the time she was approached and in fact was going home.

23. By reason of the foregoing, Plaintiff, **LYDIA SPICER** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS AS AGAINST
ALL DEFENDANTS**

24. Plaintiff, **LYDIA SPICER** repeats and realleges each and every allegation contained in paragraphs 1 through 23 with full force and effect as if each were more fully set forth herein.

25. As a result of the above actions, Defendants **NYC** and **NYPD**, individually, and/or vicariously, by and through its agents, servants and /or employees and **OFFICERS** failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff, **LYDIA SPICER** by the other Defendants **CASEY** and **CROWE**.

26. As a result of the foregoing, Defendants, **NYC** and **NYPD** individually, and and/or vicariously by and through their agents servants and/or employees, **OFFICERS** displayed a deliberate indifference to Plaintiff, **LYDIA SPICER** rights to be free from excessive force.

27. As a result of the foregoing, Defendants **NYC** individually and/or vicariously by and through its agents servants and/or employees who acted intentionally, willfully, maliciously, with reckless disregard for and deliberate indifference to Plaintiffs rights and physical well being.

28. By reason of the foregoing, Plaintiff, **LYDIA SPICER** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING,
TRAINING, RETENTION, AND SUPERVISION AGAINST DEFENDANT NYC**

29. Plaintiff **LYDIA SPICER** repeats and realleges each and every allegation contained in paragraphs 1 through 28 with full force and effect as if each were more fully set forth herein.

30. That at the time of the use of excessive force on Plaintiff, **LYDIA SPICER**, all of the above-captioned Defendants were acting in the course and general scope of their employment duties and official duties pursuant to the authority given them by defendant **NYC**.

31. Defendant **NYC**, at all relevant times herein should have known or had reason or opportunity to know, that the agents, servants and/or employees named as Defendants in this complaint were unfit for the employment for which they were hired, unfit for the official duties delegated to them and unfit for the law enforcement, investigatory and prosecutorial responsibilities to which they were assigned.

32. That by hiring, retaining, employing, failing to supervise, failing to screen, failing to test, failing to evaluate, failing to monitor, failing to manage, failing to train and failing to investigate the aforementioned agents, servants and/or employees, Defendants **NYPD and NYC**, negligently created and caused a situation where it was likely that said agents, servants and/or employees would, use excessive force.

33. Defendants **NYC** knew or should have known in the exercise of due and reasonable care that the aforementioned agents, servants and/or employees were known to use excessive force.

34. Defendant **NYC** was negligent in the hiring, employment, training, retention, management, supervision, screening, testing, evaluating, monitoring, and investigating of the aforementioned agents, servants and/or employees.

35. That by reason of and in consequence of said negligence and lack of reasonable care on the part of Defendants **NYC** and their agents, servants and/or employees, Plaintiff, **LYDIA SPICER** suffered the aforestated injuries.

36. By reason of the foregoing, Plaintiff, **LYDIA SPICER** sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

AS AND FOR A MONELL CLAIM AGAINST THE CITY OF NEW YORK

37. Plaintiff repeats each and everyone of the above allegations.

38. NYC maintained a custom and practice of not equipping all officers with tasers. As a consequence, Officer Casey shot the plaintiff in an attempt to “shoot her in the leg.” She was trained to use a taser, but did not have one when she shot Ms. Spicer because there were no tasers left in the precinct.

39. As a consequence of the custom and practice of the City of New York, Ms. Spicer was seriously injured. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers pursuant to the customs, policies, usage, practices, procedures, and rules of the Defendant NYC all under the supervision of ranking officers of said department.

40. The customs, policies, usages, practices, procedures and rules of the Defendant NYC constituted a deliberate indifference to the safety, well-being and rights of the Plaintiff and the public.

41. The customs, policies, usages, practices, procedures and rules of the Defendant NYC were the direct and proximate cause of the violations suffered by the Plaintiff as alleged herein.

42. The customs, policies, usages, practices, procedures and rules of the Defendant NYC were the moving force behind the state and local law constitutional violations suffered by the Plaintiff as alleged herein.

43. As a result of the customs, policies, usages, practices, procedures and rules of the Defendant NYC, Plaintiff Lydia Spicer was subjected to unlawful and excessive force resulting in permanent and disabling injuries.

44. Defendants, collectively and individually, were directly and actively involved in violating the constitutional rights of Plaintiff.

45. Defendants, collectively and individually, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff's rights.

46. All of the foregoing acts by Defendants deprived Plaintiff of protected rights including, but not limited to, the right:

- a. Not to have excessive force imposed upon her;
- b. Not to have summary punishment imposed upon her;
- c. To receive equal protection under the law; and
- d. Not to be subject to unreasonable searches and seizures.

1. As a result of the foregoing, Plaintiff sustained, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her State and City constitutional rights.

AS AND FOR A FIFTH OF ACTION FOR PUNITIVE DAMAGES AGAINST ALL DEFENDANTS

47. Plaintiff, **LYDIA SPICER** repeats and realleges each and every allegation contained in paragraphs 1 through 46 with full force and effect as if each were more fully set forth herein.

48. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff, **LYDIA SPICER'S** well being, and were based on a lack of concern and ill-will towards Plaintiff.

49. Plaintiff, **LYDIA SPICER** therefore demands punitive damages in the amount of exceeds the jurisdictional limits of all lower courts against defendants jointly and severally.

WHEREFORE, Plaintiff, **LYDIA SPICER** demands judgment against the defendants on each of the above causes of action jointly and severally;

a. Such other and further relief as to the Court may seem just and proper.

Dated: New York, New York
August 24, 2020

/s/Gary N. Rawlins

GARY N. RAWLINS, ESQ.

Attorney for Plaintiff

LYDIA SPICER

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White Plains, NY 10004

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